

Dated: 01st March, 2021

Ms. Vidushi Tyagi
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Bijnor, U.P
India

Sub: Appointment Letter for the position of Senior Full Stack Developer

Dear Vidushi,

It is my pleasure to extend the following offer of employment to you on behalf of **Whizcloud Private Limited**, further to the interview and discussions you have had with us. You are expected to join duty on or before **01st May, 2021**.

You are appointed to the position of **Senior Full Stack Developer**. Your annual CTC will be **Rs 7,00,000/-** (Seven Lakhs only) with monthly remuneration as **Rs 54,167/-**. There will be an annual bonus of **Rs 50,000/-** (Fifty thousand) which will be paid at the end of your 12months tenure.

Your appointment with us will be governed by the Terms and Conditions as detailed in Annexure-B

We look forward to an enduring working relationship with yourself.

Please indicate your understanding and acceptance of the above terms and conditions as highlighted in Annexure B by signing in the space provided below.

Yours sincerely,

Anil Gupta

For Whizcloud Pvt. Ltd.

Director

Vidushi Tyagi

ANNEXURE-B

1. PROBATION PERIOD

You will be on probation for a period of 3 months, from your date of joining, after which your performance will be evaluated. You will be confirmed in your appointment in writing on successful completion of the said probationary period. It may get extended by further period of 3 months if your performance is not found satisfactory. If no confirmation is made in writing at the end of the probationary period, it will be deemed to have been extended until the company confirms you in writing.

During the probation period either party may terminate this agreement by giving 30 days' notice.

2. REVIEW OF SALARY

Your salary will be reviewed after completion of one year in the company, based on your competencies, performance, discipline etc. If your performance is found extra ordinary and above expectations then there is possibility of earlier review and giving a mid-term increment.

3. STATUTORY RULES & REGULATIONS

i. The Employee and his/her family (spouse, dependent children) shall be eligible to be covered under the comprehensive Medical Insurance Scheme/ESI provided by the company, as found applicable.

ii. The Employee has to submit the Form-16 issued by the previous Company for computation of Income Tax purposes. The Employee should also submit copies of certificates in support of age, educational, professional qualifications and previous work experiences. Originals would be shown to the Management for verifying the authenticity of the submitted copies.

iii. The Employee will be governed by the policies, service rules and regulations of the Employer Company being in force or introduced/amended later. Except otherwise stated, the services shall be governed by the terms of this Employment Contract and Service Rules annexed hereto. The Employee shall perform the duties and functions as set in Annexure B hereto. The Employer Company may from time to time and at its sole discretion, modify or add the duties and functions listed in Annexure B. The employee will not discuss the contents of this Contract with any other person including any other employee of the Employer.

iv. The Income Tax Act as prevailing at that time will govern taxation. The Employer will deduct tax at source as per income tax guidelines. The Employee is responsible for declaration of his/her total income to the appropriate authority.

v. Employee will be required to comply with service rules/standing orders applicable to and in force in the company from time to time, which shall be in consonance with the Government regulations in force.

vi. The payment of the Employee gross salary will be subject to statutory deductions such as EPF, TDS, etc. or any other deductions subject to state and central laws applicable.

vii. The Employee will be entitled to avail leaves in accordance with the Leave Policy of the Company. For availing any leave, you will have to obtain a prior sanction justifying the need for the said leave; any violation on this account may invite a penal deduction of an amount equivalent to one working day salary for each leave availed.

4. REPORTING TIME AND PUNCTUALITY

i. Your office time will be as per the norms of the company, which is subject to change as and when required. The Employee's working hours, during the period of its employment, shall be advised by its superiors from time to time as may be required for the proper performance of the Employees duties.

ii. The Employee expressly agrees that if it fails to perform its duties according to the scheduled working hours, is absent without leave or resorts to stoppage of work, whether alone or with others, the Employer will be fully entitled to deduct the salary of the Employee in proportion to the working hours wasted by the Employee.

5. WORK ETHICS AND CONFIDENTIALITY

i. The employee will not divulge or part with any information regarding the business of the company to anyone during the tenure of your employment with the company and thereafter.

ii. The Employee hereby undertake to work to the best of the abilities and be loyal to the Employer Company and further agree to make suggestions and recommendations that will be of benefit to the Employer Company.

iii. The information relating to the Employee stipend/pay and other perquisite etc. will be a matter of confidence between the Employee and the Employer and should not be divulged to anyone.

iv. The Employee will devote his/her entire time to the work of the company/Employer and will not undertake any other direct or indirect business or work, honorary or remuneration, except with the prior written permission of the Employer/management in each case.

v. Employee shall not give out to anyone by word of mouth or otherwise any particulars, information or details of our business, technical know-how, security arrangement, systems and procedures, confidential data, pricing, administrative or organizational information of any confidential nature during the employment with the Employer or afterwards, which the Employee acquire during the course of your employment.

vi. The Employee shall maintain and keep in safe custody all books, manuals, registers, documents, equipment and imprest that may be issued to the Employee or may come into the possession during the employment and shall return the same on termination of the services, prior to the settlement with the Employee. Losses will be made up by replacing new items or by paying cost of items (all inclusive)/ return of imprest, prior to the final settlement; failing which the Employer reserves the right to deduct from the deposit of the Employee.

vii. The Employee shall conduct himself in such a manner, as to justify the trust and confidence reposed in the Employee and act at all times in consistence with the position of responsibility the Employee enjoy; wherein theft/misappropriation of the Employer/company money amount to misconduct or punishable offence.

viii. If at any time during the employment, the Employee is found guilty of any act of misconduct or any willful breach or continuous negligence or under performance in terms of this appointment letter or rules or dereliction of duties, disobedience of the instructions given to the Employee from time to time, the Employer/ Management may, without any notice or payment in lieu of any notice, put an end to the contract of employment. The Employee will be deemed to have brought about such a situation by misconduct compelling the management to put an end to the services and in addition the Employee shall be liable for losses, damages to the Employer company.

ix. In case of your writing or contributing to any article or review in any book, magazine, periodical or newspaper using the company's data or research bank, which is the company's intellectual property, you shall seek prior written permission from the management of the Company.

6. EMPLOYEE'S RESPONSIBILITY AND OBLIGATIONS

i. You shall devote your full time and attention to your duties and responsibilities allotted to you and shall not indulge yourself in any business or part time service directly or indirectly in whatsoever manner.

ii. Consumption of Tobacco, Pan Masala, and Alcohol etc. in the office is prohibited; any violation on this account may attract disciplinary action.

iii. You shall entertain any outsider or even an ex-employee of the company during office hours as per the norms of the company.

iv. You shall not open or create or design any alliance or front or politics among the staff members and shall not participate in any activities related to it, for your oblique motives or for the detriment of the company.

v. Facility extended to you at a particular place will not constitute a permanent benefit by virtue of any prevalent practice or local law like Shops and Establishments etc. Such benefits will cease to accrue on you on your transfer to a new place where under local law or prevalent practice the same benefit is not available and such variance will not amount to change in your conditions.

vi. If at any time the Employer Company will be willing to sponsor you for any training program abroad it shall be obligatory on your part to execute a service bond undertaking to serve the company as per the terms and conditions set out by the company.

7. POSTING AND TRANSFER

Your place of work, in the first instant, is as indicated above. However, you can be transferred temporarily or permanently for duty anywhere in India, depending upon the needs of the organization. Your service may be transferred to any office of the Company or its associate organizations in India or abroad depending upon the exigencies of work. You will be governed by the transfer rules prevailing in the company at any given point of time.

8. SUPERANNUATION

The Employee would be liable to be superannuated on reaching the age of 55 years or the service may be terminated earlier if the Employee is found medically unfit. The Management/Employer will also have a right to terminate the services of the Employee earlier in case any of the other conditions contained in the present agreement are violated by the Employee.

9. INTELLECTUAL PROPERTY RIGHTS AND TRADE SECRETS

i. All intellectual and other output produced by the Employee during the employment with the Employer, is the property of the Employer.

ii. Any unauthorized copying of software, documentation, manuals etc. is an infringement of this act and is a disciplinary offence.

iii. For consideration paid by the Employer, the Employee agrees that the Employee will not use, divulge, publish or otherwise reveal, either directly or through another, to any person, firm or corporation, during the term hereof, or at any time subsequent to termination thereof, any business or operation know-how, designs, customer lists or information, with regard to the financial or any other affairs of Employer or any affiliate or subsidiary or other associated company thereof ("Employer") or any knowledge or information or any facts concerning any formulas, methods, inventions, designs, devices or "Advancement" of any kind used by the Employer and disclosed to the Employee by reason of his employment, and the Employee shall retain all operational know-how, knowledge and information which is acquired from the Employer during his employment like customer lists, formulas, methods, inventions, designs and devices and the business of the Employer, in a confidential capacity for the sole benefit of Employer, its Successors and Assignees.

10. COVENANT OF CONFIDENTIALITY & NON DISCLOSURE

In order for Employee to provide, or to continue to provide, services to Employer, the Employer is required to provide Employee with certain trade secrets and Proprietary information of Whizcloud Pvt Ltd /Employer.

A. As used in this Agreement, the term Proprietary Information is defined to include:

☐ All software, computer programs, source code, object code, system documentation, user documentation, system designs, programs, materials, screen displays, manuals, operation processes, equipment design, product specifications, written materials, documentation, data and information regarding products or services, whether finished, under development or being tested, whether any or all of the foregoing are in tangible, magnetic, digital or other form.

☐ Concepts, methods, techniques, formats, patterns, compilations, programs, devices, designs, technology, equipment, formulas, processes, packaging, testing, information, data, systems, operations, ideas, research, improvements, inventions, discoveries and know-how.

☐ Information relating to Whizcloud Pvt. Ltd.'s customers, accounts, suppliers, marketing activities or plans, business plans, distribution, pricing, financial matters, financial statements, or any information revealed to Whizcloud Pvt Ltd by third parties under any confidentiality agreement, understanding or duty.

☐ Information generally regarded as confidential in the industry or business in which Whizcloud is engaged, which are or shall be owned, developed, used by, related to or arise from Whizcloud its businesses, activities, investigations, work of its Employees or agents, utilization of equipment, supplies, facilities or information, now or in the future, whether or not published, patented, copyrighted, registered or suitable therefore.

B. Employee acknowledges that Whizcloud Pvt. Ltd.'s Proprietary Information is valuable, special and unique to its business; that it is not widely known; and that Whizcloud Pvt. Ltd.'s business depends on such Proprietary Information.

C. Employee acknowledges that Whizcloud Pvt. Ltd has taken, and continues to take, reasonable and necessary steps to protect its Proprietary Information and keep it confidential, including requiring him/her to sign this Agreement. D. Based on the foregoing, Employee agrees as follows:

i. All rights to Proprietary Information are and shall remain the sole property of and in control of Whizcloud Pvt. Ltd

Except as required by applicable law or as authorized in writing by Whizcloud Pvt. Ltd.'s Board of Directors, he/she will keep Whizcloud Pvt. Ltd.'s Proprietary Information confidential.

☐ Except as required by applicable law or as authorized in writing by Whizcloud Pvt. Ltd's Board of Directors, he/she will not, at any time: Reproduce or copy;

a) Disclose or transfer;

b) Aid, encourages or allows any other person, business or entity to gain possession or

Access to;

c) Use, sell, or exploit; or

d) Encourage or allow any other person, business or entity to use, sell or exploit any of Whizcloud Pvt. Ltd.'s Proprietary Information; ii. The employee will not or disclose any information received by Whizcloud Pvt. Ltd from a third party for the period required by any confidentiality agreement, understanding or duty between Whizcloud Pvt. Ltd and the relevant third party; and

iii. The Employee will notify future employers and customers of the terms of this provision and his/her responsibilities hereunder.

11. NON- COMPETE

For good consideration and as an inducement for the Employer Company to employ the Employee, the employee hereby agrees not to directly or indirectly compete with the business of the Employer Company and its successors and assigns during the period of employment and for a period of six months following termination of employment and notwithstanding the cause or reason for termination.

12. INDEMNITY AND LIABILITY

i. Employee agrees that irreparable harm shall be presumed in the event of any breach of this Agreement, and further agrees that in connection with any such breach, damages would be difficult if not impossible to ascertain, and the faithful observance of all terms of this Agreement is an essential condition to employment or service with the Employer.

ii. The Company may notify any future or prospective employer or third party of the existence of this agreement, and shall be entitled to full injunctive relief for any breach. iii. The Employee undertakes to indemnify and hold the Employer harmless from and against all or any claims, actions, liabilities, demands, proceedings or judgments ("Proceeding") brought or established against the Employer including all losses and all reasonable costs, charges and expenses which the Employer may suffer or incur

13. TERMINATION

The employee may broadly be terminated under the following circumstances:

i. If the Employee is alleged to have committed misconduct (s) as specified in the Service Rules/Model Standing Orders or otherwise, the Employee will be liable to be suspended from the services of the Company till the conclusion of inquiry proceedings or till further orders.

ii. In case the Employee remains unauthorized absent for two days or overstay the period of leave originally granted or subsequently extended, the Employee shall lose lien on the appointment and it shall be presumed that the Employee have abandoned the job of his/her own accord.

iii. If any particular furnished by you in your application / personal data form or during the interview, or later during the tenure of your service in the organization as the case may be, are subsequently found to be incorrect.

iv. If you are found guilty of misconduct, disobedience, inefficiency, misappropriation misrepresentation, insubordination and or breach of any of the terms and conditions of your appointment and also of the rules and regulations of the organization as enforce from time to time.

v. In case you remain absent for 12 days continuously including holiday or overstay the sanctioned leave for eight days under any circumstances. In such a case, it would be deemed that you have abandoned your job and will have no claim to reinstatement and/ or any compensation thereof

14. RESIGNATION

i. The Employee is required to serve a notice period of 60 days

ii. In event of the Employee not reporting at the given place of work on the given date or Employee deserting site without written approval from the concern Departmental Head, the Employee should be deemed to have relinquished the appointment.

iii. The Management reserves the right to accept the prospective resignation with effect from a date earlier than the one offered by the Employee and thus relieve the Employee at any time during the notice period as the notice is for the benefit of the management and balance notice period can be waived off at any time by the management. In this case the Employee shall be entitled to receive salary only for the actual number of days worked. The resignation shall become effective as soon as the management accepts it. The management shall be competent to withhold its acceptance in respect of the resignation in case dues are recoverable from the Employee or if the Employee is under suspension and/or disciplinary proceedings are pending or contemplated against the Employee or for any other reasons.

iv. After having opted to resign and given the intimation to this effect, the Employee shall not be allowed to withdraw the resignation except with the written permission of the management.

15. LAW AND JURISDICTION

This agreement shall be governed by and constructed in accordance with the laws of India and the competent courts at New Delhi shall have exclusive jurisdiction in the matter to the exclusion of all other courts.

16. NOTICE AND MISCELLANEOUS

i. The employee shall not refuse to accept any official letter offered to the Employee by hand or registered mail. The Employee has given the residential address as mentioned above in this contract. In the event of change in the address

given by the Employee, the same shall intimate the change in writing, immediately to the office of the establishment where the Employee is posted. Any communication or notice forwarded to the Employee by the company by post to the last residential address given by the Employee as per the office record shall be deemed to be complete compliance by the company on having communicated to the Employee they said communication or notice, notwithstanding the postal authorities returning the communication for any reason whatsoever.

ii. Any notice or other written communication given under or in connection with this

Agreement may be delivered personally or sent by courier or by facsimile to the Employer

17. DISPUTE RESOLUTION

The Parties agree to use good-faith efforts to settle through discussion any dispute, controversy or claim arising from or relating to this Agreement. In the event that any dispute arising in connection with this Agreement cannot be settled through good faith negotiation within 30 days after commencement of such negotiation, the subject matter of the dispute shall be submitted to a sole arbitrator for final settlement. The Employer will have the right to appoint the arbitrator and in the event that The Employer fails to do so within a reasonable period of time, the Employee will have the right to approach the concerned Court to seek appointment of an arbitrator. All pertinent evidence on the subject matter in dispute shall be made available to the arbitrator or arbitrators and each party to the dispute shall have the right to present both orally and in writing its arguments and views on the dispute. The decision of the arbitrator shall be rendered in writing and shall be binding upon the parties to the dispute. Each Party shall bear its respective costs, charges and expenses of such arbitration. Any such arbitration shall be held in New Delhi (India) and shall be conducted in English language and in accordance with the applicable Arbitration Act, Rules in effect and/or as in effect from time to time.

18. GENERAL

You shall be subject to the various rules, regulations, administrative policies and other policies of the company. The management has absolute power and right to cease or to modify / review the regulations and the said policies from time to time with or without intimation to you.

At the same time, it should be noted that it is an offer letter only and its validity is restricted to receipt of your confirmation in this regard. Please sign the duplicate copy of this appointment letter as on your acceptance.

Please indicate your understanding and acceptance of the terms and conditions highlighted in Annexure B by signing in the space provided below.

For Whizcloud Pvt. Ltd Accepted by

Anil Gupta

Director

Vidushi Tyagi

Acknowledgement & Acceptance

Dear Sir / Madam,

I have read and understood the above terms and conditions of employment and the implication thereof. I hereby accept the aforesaid terms and conditions and agree to abide by the same.

Signature:

Date:

Place: